

Acquisition and loss of citizenship in EU Member States

Overview and key issues

SUMMARY

Access to citizenship status is an important prerequisite for enjoying rights and privileges, such as migration and political rights, as well as for developing a sense of identity and belonging. Since the establishment of Union citizenship, all persons who are nationals or citizens of an EU Member State enjoy the status of EU citizenship, which confers on them a number of additional rights and privileges. However, Member States retain full control over whom they recognise as citizens.

Although the legal rules on the acquisition and loss of citizenship in the EU Member States remain divergent, one can identify a number of common key trends and issues. The need to integrate long-term immigrants has pushed EU countries to amend their citizenship laws. This has often resulted in making citizenship both more liberal (lowering residence requirements and tolerating dual citizenship) and more restrictive (introducing integration clauses and citizenship tests). Security concerns related to terrorist activities and the war in Ukraine have also triggered changes to Member States' citizenship laws, specifically regarding the conditions for revoking citizenship.

Concerns about immigrants' integration, allegiance and belonging, as well as about the cultural and economic consequences of regional integration and globalisation, are at the heart of recent debates about citizenship in Europe. Moreover, in the EU, the issue of access to citizenship is no longer a matter that concerns Member States alone. The bundling of national and EU citizenship means that Member States have a certain responsibility towards each other when making decisions over who to accept (or reject) as a citizen.

This is an update of a [briefing](#) published in July 2018.



IN THIS BRIEFING

- Introduction
- Acquisition of citizenship
- Loss of citizenship
- Citizenship and immigrant integration
- EU citizenship 'for sale'
- Deprivation of (EU) citizenship



Introduction

Citizenship is a complex legal and socio-political concept with three major components: 1) legal status; 2) rights and obligations; and 3) national identity.¹

Firstly, citizenship describes a legal bond between a person and a state. The power to regulate citizenship is generally an essential and exclusive attribute of state sovereignty. International law imposes only a few limitations on the right of states to regulate citizenship, in particular with regard to the prohibition of statelessness and the arbitrary deprivation of citizenship.

Secondly, the status of citizenship implies a series of rights and obligations. The most important citizenship rights are the right to vote and stand in elections, the right to return to one's country of citizenship and the right to seek diplomatic protection while abroad. EU citizens residing in another EU Member State have the right to vote and stand in the elections for the [European Parliament](#). While a number of EU countries grant third-country nationals political rights in municipal elections, political rights in national elections remain a [privilege](#) reserved for citizens. As a general rule, voting is compulsory for citizens in [Belgium](#), [Luxembourg](#), [Greece](#) and Bulgaria.

Thirdly, citizenship is often associated with national identity. While the possession of a particular national (or ethnic) identity was a prerequisite of citizenship in the past, the last half century has witnessed a gradual liberalisation and decoupling of ethnicity and citizenship.² However, questions about national identity, citizenship and belonging have regained the spotlight in the context of debates about immigration and integration.

Acquisition of citizenship

There are two major pathways for acquiring citizenship: 1) at birth, either through descent (*ius sanguinis*) or through birth in the territory of a country (*ius soli*); and 2) after birth, through various naturalisation procedures.

Acquisition of citizenship at birth

The vast majority of people in the EU and the rest of the world **acquire citizenship at birth through descent** from or birth to a citizen. This procedure is generally automatic in most cases, but there are exceptions, particularly when the child is born abroad and/or when one of the parents is not a citizen. In Belgium, Germany and Ireland, if a child is born abroad to a citizen who was also born abroad, the parent (or both parents, depending on the case) needs to apply for citizenship, usually within a specific period after the child's birth (5 years in Belgium, 1 year in Germany, if the parent was born abroad after 31 December 1999). In this case, the acquisition is discretionary (in other words, it is not an entitlement) in both Germany and Ireland. In Croatia and Slovenia, a child born abroad to a citizen and a non-citizen needs to be registered (discretionary acquisition). In Cyprus, if the child is born to a citizen who is a permanent resident abroad, the birth must be registered in Cyprus before citizenship is acquired (entitlement). In Denmark, children born abroad to Danish citizens illegally resident in conflict zones cannot acquire Danish citizenship by descent. In Portugal, a child born abroad to citizens who are not in the service of the country can acquire citizenship by application (discretionary). In Slovenia, a child born abroad to a citizen and a non-citizen can acquire citizenship by application (entitlement) after reaching 18 years of age and before turning 36.

Citizenship and nationality

The terms 'citizenship' and 'nationality' are often used interchangeably to denote the legal bond between an individual and a state. While 'nationality' is the preferred legal term, 'citizenship' is used more broadly to describe the rights, duties and practices linked to this formal status. In certain contexts, the term 'nationality' also denotes belonging to a national or ethnic community.

In the EU, citizenship of the Union was established by the Treaty of Maastricht in 1991 as an additional legal status enjoyed by 'every person holding the nationality of a Member State'.

No country in the EU grants automatic and unconditional citizenship to **children born on their territories to foreign citizens**. In countries that provide for conditional *ius soli*, the most common condition is that parents should have resided in the country for a certain time before the child's birth. Five EU countries have rules on conditional *ius soli* (see Figure 1). The minimum parental residence required ranges from 3 to 10 years: 10 years in Belgium, 5 years in Germany (lowered from 8 years in [2024](#)) and Greece, 3 years in Ireland and 1 year in Portugal (lowered from 5 years in [2020](#)).

In 2024, following a migration crisis and social unrest in Mayotte, a French territory in the Indian Ocean, [France](#) announced plans to restrict birthplace citizenship in the territory. In January 2025, the French National Assembly [adopted](#) a law, according to which a child born in Mayotte will only be able to acquire French citizenship at the age of 13 if both parents have been legally resident in the territory for at least 3 years. The law still needs to be validated by the Senate and the Constitutional Council.

Figure 1 – Rules of *ius soli* citizenship in the EU-27

	<i>Ius soli</i> – first generation	<i>Ius soli</i> – second generation	No <i>ius soli</i> *
Unconditional		France Luxembourg Spain	Austria Bulgaria Croatia Cyprus Czechia Denmark Estonia Finland Hungary Italy Latvia Lithuania Malta Poland Romania Slovakia Slovenia Sweden
Conditional	Belgium Germany Greece Ireland Portugal	Belgium Greece Netherlands Portugal	

*This category excludes exceptional *ius soli* for children who would otherwise be stateless.

Data source: [GLOBALCIT](#), 2022 (with author's updates, 2025).

In seven Member States (Belgium, France, Greece, Luxembourg, the Netherlands, Portugal and Spain) children born in the country to foreign citizens can acquire citizenship at birth if at least one of their parents was also born in the country (*ius soli* for the second generation). The acquisition of citizenship is unconditional in France, Luxembourg and Spain. However, children in Spain can acquire citizenship through *ius soli* only if they renounce any other foreign citizenship acquired at birth.³ *Ius soli* for the second generation is conditional upon satisfying certain parental residential requirements (5 years' prior residence for parents), Greece (permanent residence status for parent(s)), the Netherlands and Portugal (at least one parent's residence in the country at the birth of the child). Belgium, Greece and Portugal all have provisions on conditional *ius soli* for both the first and the second generation. The remaining 18 Member States do not have any provisions on *ius soli* citizenship. They may nevertheless exceptionally grant such citizenship to children who would otherwise be stateless, or provide for facilitated acquisition of citizenship after birth (naturalisation) due to birth in the country.

Children of unknown parents and those who are **otherwise stateless at birth** are particularly vulnerable categories of persons. Failure to ensure that a child acquires citizenship at birth is one of the major causes of [statelessness](#). The 1961 United Nations [Convention](#) on the Reduction of

Statelessness (Articles 1 and 3) imposes an obligation on the country of birth to grant citizenship to children who are otherwise stateless at birth either automatically at birth or upon application. Article 6(2) of the 1997 [European Convention on Nationality](#) imposes an obligation on the country of birth to grant citizenship to minors who are born on its territory and who do not acquire another citizenship at birth. According to Article 2 of the 1961 Convention and Article 6(1)b of the ECN, children found in a country, or of unknown parentage, should, in the absence of proof to the contrary, be considered to have been born on that territory to parents who are citizens of that country.

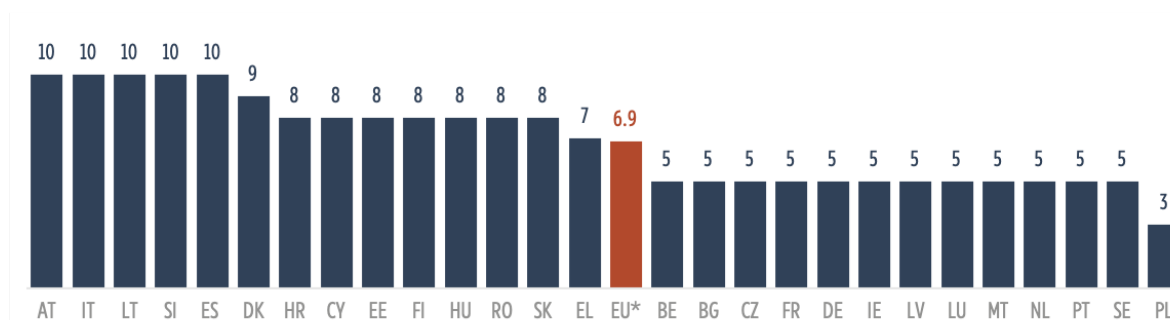
All EU countries except Cyprus grant citizenship automatically to children found in a country, or **of unknown parentage** (foundlings). In several countries, however, the automatic acquisition of citizenship by foundlings is restricted to certain age categories: new-born infants (Ireland and Portugal), children under 3 years of age (Czechia). All EU countries, except Cyprus and Romania, have legal provisions for the acquisition of citizenship by persons born in the country who remain stateless (persons born to stateless parents or who cannot acquire their parents' citizenship). In about half of these countries, the acquisition of citizenship by stateless persons is conditional on satisfying certain age and/or residential requirements.

Acquisition of citizenship after birth

Legal provisions regarding the acquisition of citizenship after birth based on residence (naturalisation) are generally complex and cumbersome. A distinction is drawn between ordinary naturalisation,⁴ when the primary grounds of acquisition of citizenship are a certain period of residence in the country, and special naturalisation, when the acquisition of citizenship is based on other considerations, such as family links, ethno-cultural connections, or special contributions.

The minimum **period of residence** required for ordinary naturalisation in EU countries ranges from 3 to 10 years (see Figure 2). This requirement is often qualified – meaning that only certain types of residence (legal, permanent, continuous, etc.) may count for naturalisation purposes. This implies that applicants for ordinary naturalisation often need to have resided in the country for longer periods in order to qualify for obtaining a specific type of permit. Belgium and Poland take into account applicants' residence in the country after their acquired permanent residence, which may extend significantly the minimum period of residence for naturalisation purposes.

Figure 2 – Period of residence required for ordinary naturalisation in EU countries (years)



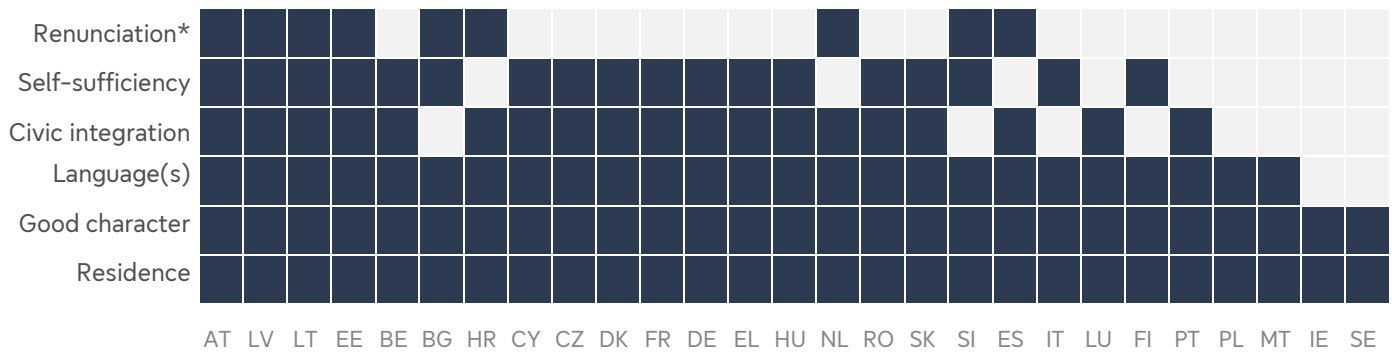
Data sources: GLOBALCIT, 2022 (with author's updates, 2025); EMN, 2024.

In addition to residence, applicants for ordinary naturalisation need to meet a number of other conditions. Most citizenship laws require such applicants to prove that they possess a certain amount of knowledge (of language(s), the constitution, institutions, etc.), provide evidence of good behaviour (lack of a criminal record, employment history), and demonstrate certain dispositions and commitments (willingness to integrate, loyalty).

All EU countries impose requirements of **good character**, typically demonstrated by applicants' lack of a criminal record (see Figure 3). Most EU countries (all except Ireland and Sweden) require applicants to **speak the local language(s)**, though the knowledge level and assessment methods

vary between countries. The required level is most commonly A2 or B1 of the Common European Framework of Reference for Languages (CEFR). Higher levels are required in Denmark (Dansk 3 corresponding to B2/C1 of CEFR), and Hungary (B2 of CEFR). In 2024, [France](#) raised the required level of language knowledge for naturalisation from B1 to B2 (applicable from January 2026). Another common requirement is to **demonstrate civic integration**, which typically involves testing applicants' knowledge of the country and its legal and constitutional system. Lastly, many EU countries also require applicants for ordinary naturalisation to show **economic self-sufficiency**, demonstrated through stable income, employment, non-reliance on social benefits, etc.

Figure 3 – Main requirements for ordinary naturalisation in EU Member States



*Renunciation of other citizenship (exceptions may apply)

Data source: GLOBALCIT, 2022 (with author's updates, 2025).

A major contemporary citizenship trend is the increasing acceptance/tolerance of **dual citizenship**.⁵ This trend is a consequence of the general application of the principle of gender equality in citizenship matters, which generates dual citizenship for children of parents with different citizenship, and of a rethinking of citizens' military duties and expectations in the post-World War II context of Western Europe's low security risks. However, nine EU countries continue, as a general rule, to require applicants for ordinary naturalisation to renounce any other citizenship they hold in order to become citizens. In many cases, however, this requirement has major exceptions. Most recently, in 2024, [Germany](#) became the latest EU country to fully scrap the renunciation requirement from its naturalisation procedure. A 2024 referendum in [Lithuania](#) failed to amend the constitution to allow for dual citizenship (73 % of those who voted were in favour of the amendment but the referendum did not reach the minimum required threshold of a 50 % turnout).

Naturalisation is not only a lengthy and strenuous process, but also a potentially expensive one. All EU countries, with the exception of Luxembourg and Romania, impose **naturalisation fees** (application and conferral fees). The ordinary naturalisation fee for one person ranges from more than €1 800 in Austria⁶ to €13 in Estonia (see Figure 4). These naturalisation fees do not include other costs incurred during the naturalisation process, such as the cost of documents, language and civic tests. There are no explicit citizenship acquisition fees applicable in Luxembourg and Romania.

In addition to ordinary naturalisation, citizenship laws also provide for **special naturalisation** procedures that allow certain categories of foreigners to acquire citizenship more easily. These categories may include spouses of citizens, refugees, persons who were born in the country, stateless persons, citizens of particular countries, former citizens, persons with cultural or ethnic ties with the country, and others.

Figure 4 – Naturalisation fees in EU countries (€)



Data source: [EMN](#), 2024 (with author's updates, 2025).

All EU countries, with the exception of Estonia, Latvia and Lithuania, offer a more relaxed naturalisation process for **spouses of citizens** (and sometimes for registered partners) compared to the one applied to other foreigners. The residence requirement does not apply to naturalising spouses in Croatia, Czechia, Luxembourg, Malta, the Netherlands and Portugal. Cyprus, Greece, Hungary, Italy, Slovenia and Spain provide a significant reduction in the required residence period for naturalising spouses (half of the regular period or less). Furthermore, Italy allows spouses of citizens to naturalise from abroad after 3 years of marriage.

Article 34 of the 1951 United Nations [Convention](#) relating to the Status of Refugees and Article 6(4) in conjunction with Article 16 of the ECN oblige states to provide for special acquisition procedures or for facilitated naturalisation for **recognised refugees**. This preferential treatment should be extended to stateless persons and persons with undetermined citizenship. Despite these norms, eight EU countries – Belgium, Croatia, Czechia, Estonia, Greece, Latvia, Malta and Portugal – do not have any specific provisions for the acquisition of citizenship by refugees. France, Hungary, Italy, Romania, Slovakia, Slovenia and Spain offer a significant reduction in the required residence period for naturalising refugees (half the regular period or less).

Loss of citizenship

Citizenship of a country can be lost in various ways. Loss of citizenship follows two general modes: (i) voluntary loss, following an individual request to renounce citizenship; and ii) involuntary loss, when citizenship elapses *ex lege* or is withdrawn by the state.

Voluntary loss of citizenship

All EU countries allow for the **voluntary loss of citizenship**. In line with international norms on avoiding statelessness, all countries make the renunciation of citizenship conditional upon the possession of another citizenship. In Austria, Bulgaria, Czechia, Greece, Hungary, Ireland, Italy, Slovenia and Spain only persons who reside outside the country can renounce citizenship. In Austria, Lithuania, Poland, Romania, Slovakia and Slovenia (for residents), persons cannot renounce citizenship if they face ongoing criminal charges or convictions. Failure to comply with military service obligations is an explicit ground for refusing requests for release from citizenship in Austria, Croatia (for residents), Cyprus, Estonia, Finland, Lithuania and Slovenia.

Involuntary loss of citizenship

Citizenship laws provide for a variety of grounds for the involuntary loss of citizenship. The most important of these are:

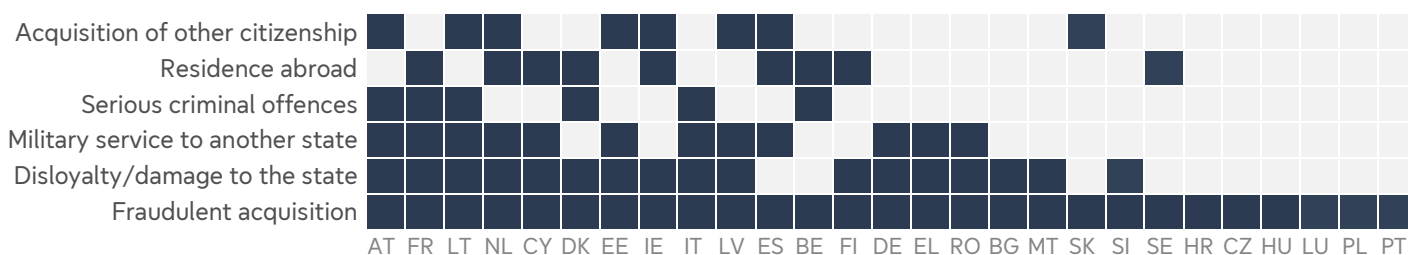
- voluntary acquisition of another citizenship,
- prolonged residence abroad,
- taking up service in a foreign army or rendering services to foreign countries,

- committing acts of disloyalty or treason,
- fraudulent acquisition of citizenship.

All EU countries, with the exception of Croatia, Poland and Sweden, have provisions for withdrawing citizenship in cases where **fraud is discovered in the process of acquiring it** (see Figure 5). In 12 EU countries, persons can be deprived of citizenship if they take **service in a foreign army**. Prolonged **residence abroad** (usually outside the EU) is grounds for the involuntary loss of citizenship in 10 EU countries. However, in Cyprus, Ireland and Malta, this rule only applies to naturalised citizens, while in Belgium, Denmark, Spain and Sweden it only applies to citizens who were born abroad. **The acquisition of another citizenship** (usually another non-EU citizenship) can lead to the automatic loss of citizenship in nine EU countries: Austria, Estonia, Germany, Ireland (only for naturalised citizens), Latvia, Lithuania, the Netherlands, Slovakia and Spain.

In 15 EU countries, citizenship can be revoked on grounds of **treason or disloyalty**. The actions covered by these grounds include: committing serious crimes against the country (Belgium, Bulgaria, Denmark and the Netherlands); acting against a country's constitutional order and institutions (Denmark, Estonia, France, Latvia and Lithuania); showing disloyalty by act or speech (Cyprus, Malta and Ireland); and, more generally, acting against national interests (Greece, France, Romania and Slovenia). In Belgium, Bulgaria, Cyprus, Estonia, France, Ireland, Lithuania and Malta, these grounds for revocation apply only to naturalised citizens. Involvement in terrorist activities is explicitly mentioned as a reason for withdrawal of citizenship in France and the Netherlands.

Figure 5 – Main grounds for the involuntary loss of citizenship in EU Member States



Data source: [GLOBALCIT](#), 2022 (with author's updates).

In 2024, [Lithuania](#) announced plans to adopt new rules revoking the citizenship of persons holding dual citizenship if they pose a threat to national security, publicly support a foreign state that threatens the security interests of Lithuania, other EU countries and their allies, or support or engage in acts that violate the principles and norms of international law on behalf of a foreign state. Discussions are ongoing in [Sweden](#) regarding the introduction of the possibility to revoke citizenship for dual citizens who pose a national security risk. Additionally, the [Dutch](#) government has proposed revoking citizenship for individuals convicted of serious crimes with an anti-Semitic aspect.

Citizenship and immigrant integration

In the past, Europe was primarily a continent of emigration rather than immigration. Large-scale immigration into Europe began after World War II due to decolonisation and economic reconstruction.⁷ Although several north-western European countries, such as Germany and France, put specific immigration programmes in place to attract the desired workforce, most post-war immigration into Europe was spontaneous and unregulated. At the time, the expectation in the receiving countries was that immigration was temporary and that immigrants would return to their countries when their labour was no longer needed. However, this expectation proved to be misguided. Despite the restrictions on immigration imposed in the 1970s due to the economic stagnation caused by the oil crisis, the number of immigrants continued to rise. A new wave of immigration occurred after 1990, following the collapse of the Eastern Bloc and the EU's enlargement to the east.

As the experience of traditional countries of immigration (such as the United States and Canada) shows, *ius soli* citizenship plays an important integrative function because it ensures the automatic inclusion of children of immigrants into the body of citizens. Despite the fact that many countries in Europe host significant numbers of immigrants, none of them has (maintained) unconditional *ius soli* citizenship. Nevertheless, over the past decade, Germany (2000 and 2024), Greece (2004, 2020) and Portugal (2004) have introduced rules on conditional *ius soli* or extended the existing ones.

The pressure to integrate immigrants in Europe has pushed many countries to lower the barriers to naturalisation and to accept dual citizenship. However, against the background of increased international migration, economic globalisation and supranational integration, citizenship in Europe has become more contested and politicised.⁸ Concerns about social integration and security risks associated with migration have triggered a more restrictive trend in citizenship policies. For example, [Finland](#) and [Cyprus](#) have recently increased the minimum residence period from 5 to 8 years. Conversely, Germany has gone the other way and lowered the minimum residence period from 8 to 5 years.

Plans for more restrictive naturalisation rules are currently being discussed in [Denmark](#) (reject applicants with anti-democratic attitudes), [Estonia](#) (further restrict acquisition for persons convicted for criminal offences), [Lithuania](#) (prohibit acquisition for persons posing a threat to national security), the [Netherlands](#) (increase the minimum period of residence and introduce stricter language requirements), and [Sweden](#) (introduce stricter character requirements and add a new self-sufficiency requirement).

The increasingly conditional nature of naturalisation seems to indicate a reversal of the integration paradigm, with citizenship no longer being a prerequisite of integration but the culmination of an integration process that has reached completion.⁹ However, this is at odds with important findings in citizenship research. According to the 'citizenship premium' theory, migrants acquiring citizenship in their new countries tend to improve their employment opportunities, as employers react more positively to their new status (the 'citizenship premium' hypothesis). Moreover, the anticipation of citizenship also drives migrants to invest more seriously in their socio-economic integration.¹⁰ Restricting access to citizenship may therefore delay rather than bolster migrants' integration.

EU citizenship 'for sale'

Many citizenship laws in the EU allow for the exceptional naturalisation of persons with special talents or extraordinary achievements, as well as those who can make a significant contribution to the state. These provisions are often used to naturalise sportspeople, artists, and occasionally investors and the wealthy. [Three Member States](#) (Bulgaria, Cyprus and Malta) introduced [citizenship by investment](#) schemes (CBI),¹¹ through which third-country nationals could obtain easier access to citizenship based on certain amounts of investment in the national economy. Initially, in the case of Malta, an investor could obtain citizenship without having to take up residence in the country. Following criticism from the European Parliament and the European Commission, Malta later amended its scheme to introduce a one-year residential requirement. Bulgaria and Cyprus have recently abolished their CBI programmes.

While some [commentators](#) claim that the Maltese policy did not breach EU law, others argue that selling EU citizenship is incompatible with the associative obligations of Member States. Apart from normative considerations,¹² investor citizenship also raises [practical concerns](#) about tax evasion, corruption, extradition and security.

The Maltese case has a clear EU dimension because Malta deliberately sought to sell Maltese citizenship as a package along with the arguably more valuable status of EU citizenship. EU citizenship was established in 1991 by the Treaty on European Union to promote EU values and identity. According to [Declaration 2 on nationality](#), 'the question whether an individual possesses the nationality of a Member State shall be settled solely by reference to the national law of the Member State concerned'. However, the Court of Justice of the European Union ([CJEU](#)) has

gradually broadened the scope of EU citizenship in relation to national citizenship by imposing limits on the power of Member States to regulate national citizenship. For example, in the [Rottman case](#), the CJEU maintained that EU Member States should exercise their right to regulate their national citizenship 'having due regard to Community law'.

In its 2019 [report](#) on CBI and related residence by investment schemes (RBI), the Commission concluded that such schemes 'pose risks for the Member States and the Union as a whole, including in terms of security, money laundering, circumvention of EU rules, and tax evasion'. In 2020, the Commission launched [infringement proceedings](#) against Cyprus and Malta concerning their CBI schemes. In the context of the Russian aggression against Ukraine in February 2022, the [European Parliament](#) warned against CBI schemes and called on the Member States 'to stop operating their CBI and RBI schemes for all Russian applicants with immediate effect'. The [Commission](#) also recommended Member States concerned 'to carry out assessments in order to determine whether citizenship previously granted to Russian or Belarusian nationals subject to sanctions or significantly supporting the war in Ukraine should be withdrawn'.

In March 2023, the Commission brought an [action](#) against Malta before the CJEU for its continued refusal to end its CBI scheme. The Commission asserted that 'by establishing and maintaining such a scheme, Malta compromises and undermines the essence and integrity of Union citizenship in breach of Article 20 TFEU and in violation of the principle of sincere cooperation enshrined in Article 4(3) TEU'.¹³ In his [opinion](#) of 4 October 2024, Advocate General Collins rejected the Commission's claims that naturalisation required a prior 'genuine link' between the state and a person naturalising as its citizen. In his view, 'EU law does not define, much less require, the existence of such a link in order to acquire or to retain that nationality'.

The idea that citizenship should be based on a genuine link was invoked by the International Court of Justice (ICJ) in the [Nottebohm case](#) (1955) as grounds for rejecting a state's claims of diplomatic protection for a citizen who had no 'genuine connection of existence, interests, and sentiments...' with that state. However, the interpretation of citizenship as a genuine link derived from the Nottebohm case is [contested](#) in legal scholarship. As [Carrera](#) argued,¹⁴ by framing EU citizenship in terms of a genuine rather than a formal link, the EU may indirectly encourage Member States to misuse the idea of a genuine link in order to legitimise nationalist and exclusionary citizenship policies.

Deprivation of (EU) citizenship

Recent terrorist attacks on European soil and the subsequent intensification of security concerns among citizens and policymakers have pushed a number of states to reactivate and expand legal provisions on deprivation of citizenship in order to deter, punish and discredit terrorists. Deprivation of citizenship has been a means used by certain Member States to counter terrorist threats posed by foreign terrorist fighters, especially after the Islamic State in Iraq and the Levant's (ISIL) attack in Paris in 2015.¹⁵ This is part of a broader global trend to instrumentalise citizenship in the fight against terrorism.¹⁶

In the context of the war in Ukraine, the issue of depriving individuals of citizenship for joining a foreign army has sparked debate. This has been the case for countries that allow for the loss of citizenship in such situations, but have shown understanding towards their citizens who wish to join the Ukrainian forces against the Russian invader. For example, in February 2022 the Latvian parliament passed an [amendment](#) that exempted citizens who joined the Ukrainian army from Article 24(2) of the Latvian Law on Citizenship. However, Germans who voluntarily joined the Ukrainian army are at risk of losing their German citizenship.

Defenders of citizenship deprivation argue that withdrawing citizenship from those who pose imminent and existential threats to the state 'strengthens citizenship by reaffirming the conditions on which it is based'.¹⁷ Critics respond, however, that the practice weakens citizenship because it

makes it 'contingent on citizens' performance' and 'enhances the discretionary and arbitrary power of the executive, at the expense of all citizens, and of citizenship itself'.¹⁸

One of the main legal objections against citizenship deprivation is the duty of states to prevent statelessness. This legal constraint explains why most deprivation provisions only concern dual citizens. However, making the citizenship of persons holding dual citizenship less secure than that of persons holding single citizenship raises questions about citizenship equality. In a similar way, distinguishing between naturalised citizens and native citizens for the purpose of citizenship deprivation leads to the creation of different classes of citizens.¹⁹ There are also serious doubts about the effectiveness of citizenship deprivation as an instrument to combat terrorism, given that other means (such as criminal sanctions and withdrawing mobility rights) could serve this purpose better.

The loss of citizenship of a Member State triggers the loss of EU citizenship (except in the case of dual EU citizens). The CJEU has gradually clarified the scope of EU citizenship in relation to national citizenship by imposing limits to the power of Member States to withdraw citizenship when this triggers the loss of EU citizenship.

In the [Micheletti case](#), the CJEU maintained that EU Member States should exercise their right to regulate their national citizenship 'having due regard to Community law'. In the [Rottman case](#), the Court stated that the loss of EU citizenship falls 'by reason of its nature and its consequences, within the ambit of European Union law'. National authorities are therefore under an obligation to carry out the assessment of the consequences of the decision to withdraw the citizenship of the person concerned and their family.

In the [Tjebbes case](#), the CJEU found that a Member State could withdraw the citizenship of a person who had resided outside of the EU for an extended period but only under certain conditions. The Court maintained that national authorities and courts must carry out an individualised assessment of the proportionality of the decision to withdraw citizenship. Persons affected should also have the possibility to reacquire citizenship through a simplified procedure. In the [X case](#), the CJEU clarified that a Member State could withdraw the citizenship of a citizen who was born abroad and never resided in the country, but only if certain conditions were met. If the loss of citizenship triggers the loss of EU citizenship, the Member State should examine the proportionality of that loss. In the [Stadt Duisburg case](#), the CJEU ruled that a Member State could withdraw citizenship from a citizen who voluntarily acquires the citizenship of a third country. However, it maintained that the person in question should be eligible to ask their country's authorities to review if this loss has unfair consequences for them. If so, the person must be eligible to retain or regain citizenship.

In the [Wiener Landesregierung case](#) concerning the withdrawal of the assurance to grant Austrian citizenship because the person committed traffic offences punishable by administrative fines, the Court provided a strict interpretation of the grounds for citizenship deprivation based on public policy and public security. The Court argued that the authorities must demonstrate that the person poses a 'genuine, present and sufficiently serious threat affecting one of the fundamental interests of society' (public policy) or a 'threat to the functioning of institutions and essential public services and the survival of the population, as well as the risk of a serious disturbance to foreign relations or to peaceful coexistence of nations, or a risk to military interests' (public security). The CJEU carried out a proportionality assessment and concluded that, given the nature and gravity of the administrative offences committed, the person was neither a threat to public policy nor public security.

The deprivation of citizenship has also been examined by the European Court of Human Rights (ECtHR), in light of its impact on the rights guaranteed in the European Convention on Human Rights, particularly the right to respect for private and family life (Article 8 of the Convention). In its [case law](#) on the topic, the ECtHR has generally found that national authorities were within their wide margin of discretion in stripping dual citizens of their citizenship in cases involving terrorist convictions.

In [Johansen v Denmark](#), the ECtHR accepted the Danish government's argument that terrorism poses a threat to a vital interest of the state justifying the deprivation of citizenship. The ECtHR determined that the seriousness of the terrorist offences committed by the applicant constituted a significant threat to human rights and showed his lack of attachment to Denmark and its values. The ECtHR identified two relevant tests regarding the legitimacy of citizenship deprivation: (1) arbitrariness; and (2) the consequences to the defendant. The fact that the applicant had obtained Danish citizenship by birth was deemed irrelevant. In the [El Aroud and Soughir case](#), the ECtHR found that the deprivation of citizenship for two dual citizens convicted on terrorism-related charges fell within the authorities' wide discretion and that the measures in question had been 'necessary in a democratic society'. The Court concluded that the applicants' actions demonstrated that their attachment to Belgium and its values had been of little consequence to them in shaping their personal identity, and that the deprivation of citizenship would not result in statelessness.

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ENDNOTES

- ¹ Bosniak, L., *The Citizen and the Alien: Dilemmas of Contemporary Membership*, Princeton, 2006.
- ² Joppke, C., '[Comparative Citizenship: A Restrictive Turn in Europe?](#)', *Law & Ethics of Human Rights*, 2(1) pp. 1-41, 2008.
- ³ Spain still requires the renunciation of previous citizenship(s) except for citizens of countries with which Spain has a dual citizenship agreement (countries from the Ibero-American Community of Nations, Andorra, the Philippines and Equatorial Guinea). This requirement is largely symbolic.
- ⁴ The term 'ordinary naturalisation' is used here as a catch-all term to cover different procedures, which may be termed differently in national laws. For example, in Belgium the term 'naturalisation' refers to a special form of facilitated acquisition of citizenship based on extraordinary merits to the country or on the fact of being stateless. The corresponding term for ordinary naturalisation in Belgium is 'declaration of nationality'.
- ⁵ Vink, M., '[The international diffusion of expatriate dual citizenship](#)', *Migration Studies*, 7:3, 2019.
- ⁶ The [average](#) naturalisation fee for Austria is the sum of the naturalisation federal fee (€125.60), the average federal conferral fee (which ranges from €247.90 and €1 115.30, but most commonly amounts to €867.40), and the average provincial administrative fee (which ranges from €300 in Vienna to €1 357 in Styria and is, on average, €837).
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